

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
FRANKIE SMITH,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER SAJJAD
ASAR, Tax No.961627, POLICE OFFICER JOHN
LENAHAN, Tax No. 964113, POLICE OFFICER JAKE
HOINA, Tax No. 963572, SERGEANT CHRISTOPHER
BRABHAM, Tax No. 921166, and POLICE OFFICERS
JOHN DOES #s 1-10 (names and numbers of whom are
unknown at present),

Defendants.
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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 3, 2023

Yours, etc.

David Hazan

JACOBS & HAZAN, PLLC.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, NYC Office of the Corporation Counsel, 100 Church Street, New York, New York 10007
POLICE OFFICER SAJJAD ASAR, Tax No.961627, 81st Precinct, 30 Ralph Ave, Brooklyn, NY 11221
POLICE OFFICER JOHN LENAHAAN, Tax No. 964113, 81st Precinct, 30 Ralph Ave, Brooklyn, NY 11221
POLICE OFFICER JAKE HOINA, Tax No. 963572, 81st Precinct, 30 Ralph Ave, Brooklyn, NY 11221
SERGEANT CHRISTOPHER BRABHAM, Tax No. 921166, 81st Precinct, 30 Ralph Ave, Brooklyn, NY 11221

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
FRANKIE SMITH,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER SAJJAD
ASAR, Tax No.961627, POLICE OFFICER JOHN
LENAHAN, Tax No. 964113, POLICE OFFICER JAKE
HOINA, Tax No. 963572, SERGEANT CHRISTOPHER
BRABHAM, Tax No. 921166, and POLICE OFFICERS
JOHN DOES #s 1-10 (names and numbers of whom are
unknown at present),**JURY TRIAL DEMANDED**Defendants.
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Plaintiff FRANKIE SMITH, by his attorneys, Jacobs & Hazan, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on May 3, 2020, at approximately 4:00 pm, he was lawfully present, outside, with several friends in the vicinity of 482 Monroe Street, Brooklyn, New York at which time several police officers approached plaintiff and his friends, and handed them free face masks they could wear to protect themselves against contracting the COVID virus. The officers told plaintiff and his friends that they were permitted to continue socializing outdoors, and that they should try to remain as safe as possible. Several minutes after the officers who gave the face masks to plaintiff and his friends left the area, the defendant police officers arrived at the location where plaintiff and his friends were lawfully socializing. Defendants approached plaintiff and his friends, unlawfully asked them to produce their identifications and also ordered them to disperse. Plaintiff and his friends told the defendant police officers that different police officers spoke with them a few minutes earlier and told them that they were permitted to continue socializing at that location. Furthermore, they told defendants that there was no reason to give the officers their identifications because they had not violated any laws. Defendants persisted in aggressively ordering plaintiff and his friends to produce identifications and disperse. The defendants' aggressive behavior caused plaintiff to become concerned that the

defendant police officers might violate his Constitutional Rights. Therefore, plaintiff attempted to walk away from the location. When defendants observed plaintiff walking away from the location they pursued him, without probable cause or legal justification. Defendants assaulted, battered, and subjected plaintiff to the use of excessive force, and defendants tackled plaintiff to the ground. The defendants unlawfully handcuffed and falsely arrested plaintiff, without probable cause to believe plaintiff committed a crime or violated the law. Plaintiff was transported, against his will, to the 81st Precinct whereat he was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours. The defendants falsified allegations against plaintiff to avoid being disciplined for falsely arresting him, and they charged him with assaulting a police officer. Thereafter, plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued. Plaintiff was released from custody at Central Booking without being charged with and/or criminally prosecuted for committing any crime, on or about May 4, 2020, approximately 24 hours after plaintiff was initially seized by the defendants. Plaintiff was released from custody after the Kings County District Attorney's Office declined to prosecute him. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, falsely arrested, and subjected plaintiff to the use of excessive force in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff FRANKIE SMITH is a resident of the state of New York.

3. Defendant POLICE OFFICER SAJJAD ASAR, Tax No.961627, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant POLICE OFFICER SAJJAD ASAR, Tax No.961627, was at all times relevant herein, assigned to the 81st Precinct.

5. Defendant POLICE OFFICER SAJJAD ASAR, Tax No.961627, is being sued in his individual and official capacity.

6. Defendant POLICE OFFICER JOHN LENAHAAN, Tax No. 964113, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant POLICE OFFICER JOHN LENAHAAN, Tax No. 964113, was at all times relevant herein, assigned to the 81st Precinct.

8. Defendant POLICE OFFICER JOHN LENAHAAN, Tax No. 964113, is being sued in his individual and official capacity.

9. Defendant POLICE OFFICER JAKE HOINA, Tax No. 963572, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant POLICE OFFICER JAKE HOINA, Tax No. 963572, was at all times relevant herein, assigned to the 81st Precinct.

11. Defendant POLICE OFFICER JAKE HOINA, Tax No. 963572, is being sued in his individual and official capacity.

12. Defendant POLICE OFFICER STEVEN RUPNICK, Shield No. 27055, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant POLICE OFFICER STEVEN RUPNICK, Shield No. 27055, was at all times relevant herein, assigned to the 77th Precinct.

14. Defendant POLICE OFFICER STEVEN RUPNICK, Shield No. 27055, is being sued in his individual and official capacity.

15. Defendant DETECTIVE SPECIALIST PATRICK BARRY, Shield No. 249, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant DETECTIVE SPECIALIST PATRICK BARRY, Shield No. 249, was at all times relevant herein, assigned to Emergency Services Unit.

17. Defendant DETECTIVE SPECIALIST PATRICK BARRY, Shield No. 249, is being sued in his individual and official capacity.

18. Defendant SERGEANT CHRISTOPHER BRABHAM, Tax No. 921166, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Defendant SERGEANT CHRISTOPHER BRABHAM, Tax No. 921166, was at all times relevant herein, assigned to the 81st Precinct.

20. Defendant SERGEANT CHRISTOPHER BRABHAM, Tax No. 921166, is being sued in his individual and official capacity.

21. Defendants New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

22. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

23. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants,

employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

24. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

25. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

26. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

27. On May 3, 2020, at approximately 4:00 pm, plaintiff was lawfully present, outside, socializing with several friends in the vicinity of 482 Monroe Street, Brooklyn, New York, at which time several police officers approached plaintiff and his friends, and handed them free face masks they could wear to protect themselves against contracting the COVID virus.

28. The officers told plaintiff and his friends that they were permitted to continue socializing outdoors, and that they should try to remain as safe as possible.

29. Several minutes after the officers who gave the face masks to plaintiff and his friends left the area, the defendant police officers arrived at the location where plaintiff and his friends were lawfully socializing.

30. Defendants approached plaintiff and his friends, unlawfully asked them to produce their identifications and also ordered them to disperse.

31. Plaintiff and his friends told the defendant police officers that different police officers spoke with them a few minutes earlier and told them that they were permitted to continue socializing at that location.

32. Furthermore, plaintiff and his friends told defendants that there was no reason for the officers to force them to provide their identifications because they had not violated any laws.

33. Defendants persisted in aggressively ordering plaintiff and his friends to produce identifications and disperse.

34. The defendants' aggressive behavior caused plaintiff to become concerned that the defendant police officers might violate his Constitutional Rights.

35. Therefore, plaintiff attempted to walk away from the location.

36. When defendants observed plaintiff walking away from the location they pursued him, without probable cause or legal justification.

37. Defendants assaulted, battered, and subjected plaintiff to the use of excessive force, and defendants tackled plaintiff to the ground, causing plaintiff to suffer physical injuries throughout his body.

38. The defendants unlawfully handcuffed and falsely arrested plaintiff, without probable cause to believe plaintiff committed a crime or violated the law.

39. Plaintiff was transported, against his will, to the 81st Precinct whereat he was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for many hours.

40. The defendants falsified allegations against plaintiff to avoid being disciplined for falsely arresting him and subjecting him to the use of force, and they charged plaintiff with assaulting a police officer.

41. Thereafter, plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued for many hours.

42. On May 4, 2020, approximately 24 hours after plaintiff was initially seized by the officers, plaintiff was released from custody from Central Booking without appearing before a judge, and without being charged with and/or criminally prosecuted for committing any crime.

43. Plaintiff was released from custody on May 4, 2020, after the Kings County District Attorney's Office declined to prosecute him.

44. At no time relevant herein did defendants recover any illegal drugs, weapons or contraband from the possession, custody, or control of plaintiff.

45. At no time relevant herein did the police officers possess objective facts that established reasonable suspicion or probable cause to believe plaintiff committed a crime or violated the law in any manner.

46. The defendants did not possess probable cause or any legal justification to arrest plaintiff or charge him with committing a crime.

47. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the officers have an objective factual basis to suspect plaintiff violated the law.

48. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

49. Several of the defendant police officers involved in plaintiff's arrest have histories of being disciplined for misconduct including for fabricating allegations against members of the public.

50. There have been hundreds of lawsuits and Notices of Claims filed with the City of New York, and complaints filed with the Civilian Complaint Review Board by members of the public alleging that NYPD police officers continue to engage in said unconstitutional and unlawful behavior, but the NYPD has not taken reasonable steps to ensure that its officers follow the NYPD's current written policies and training regarding these issues and has not retrained or disciplined its officers for continuing to behave in an unlawful and unconstitutional manner toward members of the public under these circumstances, even when the officers admit to engaging in unconstitutional behavior like the officers did in the underlying incident involving plaintiff in this case.

51. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently pervasively continue to unlawfully and unconstitutionally stop, question, frisk, search and falsely arrest members of the public without probable cause.

52. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful stop, question, frisk, search, false arrest and false imprisonment, and for subjecting plaintiff to the use of excessive force because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stop, question, frisk, search, falsely arrest and subject members of the public to the use of excessive force, without probable cause.

53. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior for decades and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

54. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City

of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

55. The unlawful stop, question, frisk, search, false arrest and false imprisonment, and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

56. The unlawful stop, question, frisk, search, false arrest and false imprisonment, and excessive force used against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

57. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. The individually named police officer defendants while acting in concert and within the scope of their authority, unlawfully stopped, questioned, frisked, searched, seized, falsely arrested, and falsely imprisoned plaintiff, without probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

59. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

61. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

64. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The illegal search of plaintiff's person employed by defendants herein, terminated plaintiff's freedom of movement through means intentionally applied.

66. Defendants lacked probable cause to search plaintiff.

67. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. The use of excessive force by defendants by tackling plaintiff to the ground and assaulting and battering him throughout his body was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Failure to Intervene

73. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

75. Defendants failed to intervene to prevent the unlawful conduct described herein.

76. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth and Fourteenth Amendments to the United States Constitution

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. Plaintiff was unlawfully searched, subjected to the use of excessive force, and falsely arrested without probable cause and without an objective factual legal basis to seize, and arrest plaintiff pursuant to an unconstitutional policy and practice of the NYPD that it is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

80. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally frisk, search, interrogate, falsely arrest, and fabricate evidence, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

81. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, and Fourteenth Amendment Rights of members of the public.

82. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, and falsely arrest members of the public when there is no factual basis to suspect the individual has committed a crime.

83. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

84. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

85. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

86. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

87. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

88. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, and Fourteenth Amendments to the United States Constitution.

89. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

90. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff FRANKIE SMITH demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recovers the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 3, 2023

By: David Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
May 3, 2023

David Hazan

DAVID M. HAZAN